

25LBCV03114 25LBCV03114

County: los-angeles

Division: Civil Law and Motion

Department: S28

Hearing date: 2026-08-11

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Case Number: 25LBCV03114 Hearing Date: August 11, 2026 Dept: S28

Tentative

Ruling:

Plaintiff

Conrad Miramontes is ORDERED to appear for deposition within twenty (20) days of this Order. Sanctions GRANTED in the amount of \$1,500.00 against Plaintiff's attorneys of record.

Analysis:

On January

22, 2026, GM filed its responsive pleading in the form of its Demurrer to the Complaint. (Stark Decl., ¶ 3.) Along with its responsive pleading, GM served a meet-and-confer letter to Plaintiff's counsel noting that this Song-Beverly matter was filed after January 1, 2025, and as such, is subject to the provisions of Assembly Bill 1755 (now codified in Chapter 12 of Title 10 to Part 2 of the Code of Civil Procedure in section 871.20, et seq.). (Stark Decl., ¶ 4, Exh. A.) In that letter, GM specifically indicated to Plaintiff's counsel that it was also issuing a notice for Plaintiff to appear for deposition. (Ibid.) GM further indicated that if Plaintiff was "unavailable to appear at the depositions as noticed, please contact our office with a date to complete the deposition." (Ibid.) GM then noted, "[t]hese depositions are to be completed no later than 120 days after the filing of the answer or responsive pleading. See Code of Civil Procedure section 871.26(c)." (Ibid.) The letter went on to mention a variety of discovery requirements that apply to this matter under Chapter 12. (Ibid.) As part of the responsive pleading e-mail, GM also attached a Notice of Deposition, for Plaintiff to appear for deposition on January 22, 2026. (Stark Decl., ¶ 5, Exh. B.)

On March

26, 2026, Plaintiff's counsel objected to the Notice of Deposition. (Stark Decl., ¶ 6, Exh. C.) Plaintiff's counsel indicated "[t]his deposition was unilaterally noticed by Defendant for a date and time on which Plaintiff and/or Plaintiff's counsel is unavailable." (Ibid.) Plaintiff stated that they will meet and confer to reschedule.

On May 13,

2026, counsel for GM sent a follow-up e-mail to Plaintiff's counsel requesting dates for Plaintiff's availability for deposition. (Stark Decl., ¶ 7, Exh. D.) GM has still not received a reply from Plaintiff's counsel. (Stark Decl., ¶ 8.) The statutory deadline to conduct the deposition of Plaintiff was May 22, 2026. (Stark Decl., ¶ 9.) GM filed the instant Motion on June 10, 2026, seeking an order compelling Plaintiff's compliance with the initial deposition requirement and \$1,500.00 in sanctions against Plaintiff's counsel.

Plaintiff's

counsel does not oppose an order requiring Plaintiff's compliance once contact is re-established, and files Opposition solely to ask the Court not to impose sanctions and to request a continuance to September 11, 2026 so that Plaintiff can re-establish contact.

Per

Plaintiff's opposition, Plaintiff's counsel has been unable to reach Plaintiff after voicemail messages left on April 20, April 23, April 29, July 8, and July 15, 2026, in addition to e-mails and text messages that have likewise gone unanswered.

Here, an

Order for Plaintiff to appear for deposition within twenty (20) days is necessary. The statutory deadline to conduct the deposition of Plaintiff was May 22, 2026. Plaintiff's counsel cites an inability to contact Plaintiff as the reason for failing to comply, but SLP has not moved to be relieved as Counsel, nor did they let Defense counsel know about the issue. There is also an inexplicable two month gap (May, June) where Plaintiff's counsel stopped attempting contact with Plaintiff. This conduct is without good cause. Without Plaintiff's deposition, GM is unable to adequately prepare for the Code mandated mediation that is to occur 150 days after GM filed its responsive pleading under Code of Civil Procedure section 871.26, subdivisions (c) and (d).

Sanctions

are also warranted for this misuse of discovery. Plaintiff objected due to unavailability but failed to give alternate dates or alert Defense counsel that they were having issues contacting their client.